Customs and Excise (General) (Amendment) Regulations, 2025 (No. 127)

IT is hereby notified that the Minister of Finance, Economic Development and Investment Promotion has, in terms of section 235 as read with section 120 of the Customs and Excise Act [*Chapter 23:02*], made the following regulations—

1. These regulations may be cited as the Customs and Excise (General) (Amendment) Regulations, 2025 (No. 127).

2. These regulations shall come into effect on 1st January, 2026.

3. The Customs and Excise (General) Regulations, 2001, published in Statutory Instrument 154 of 2001, (hereinafter referred to as "the principal regulations" are amended by the repeal of the following—

(a) section 107 (*Rebate of duty on motor-spirits, fuel oils and greases used or to be used by the Government*);

(b) section 113 (*Rebate of duty on goods for the mining industry*);

(c) section 123 (*Rebate of duty on materials and equipment imported by road safety associations or organisations*);

(d) section 132 (*Rebate of duty on materials used in the preparation and packaging of fresh produce for Export*);

(e) section 142 (*Rebate of duty on capital equipment imported for use in export processing zones*);

(f) section 144C (*Rebate of duty on parts and accessories of certain public transport type passenger vehicles*);

(g) section 144K (*Rebate of duty for development zones*).

4. The principal regulations are amended by the insertion of new sections after section 144X as follows—

DISTRIBUTED BY VERITAS
e-mail: veritas@mango.zw; website: www.veritaszim.net
Veritas makes every effort to ensure the provision of reliable information,
but cannot take legal responsibility for information supplied.

"144Y. Rebate of duty on goods used for film production infrastructure

(1) In these regulations—

"National Arts Council" means the council established in terms of the National Arts Council of Zimbabwe Act [*Chapter 25:07*];

"film production company" means an organisation as defined in section 15 of the Act;

"goods" mean materials exclusively used for film production infrastructure.

(2) Subject to this section and to such conditions as the Commissioner may in each case fix, a rebate of duty shall be granted on such goods as the Commissioner may approve, which are imported by a film production company for use in film production infrastructure.

(3) Any film production company wishing to claim a rebate of duty in terms of this section shall submit to the Commissioner the following—

(a) a written application stating full details of the goods in respect of which a rebate is sought; and

(b) the details on the use to which the goods are to be put; and

(c) written confirmation from the National Arts Council that the film production company is registered with it and entitled to the rebate; and

(d) written confirmation that the film production company is registered with the Zimbabwe Revenue Authority and have a valid tax clearance certificate;

(e) a written declaration by a responsible officer of the film production company to the effect that the goods

imported are solely for use in the film production infrastructure, and an undertaking that the goods will not be sold or disposed of in Zimbabwe without the prior written permission of the Commissioner and the payment of duty as may be due; and

(f) any other details as may be required by the Commissioner.

(4) No film production company to which a rebate of duty has been granted in terms of this section shall sell or in any manner whatsoever dispose of to any person or organisation any goods in respect of which such rebate was granted within five years of the date of their entry under rebate without the prior written permission of the Commissioner and payment of the duty which would have been payable at the time of entry but for the granting of such rebate.

(5) If the Commissioner gives the permission referred to in subsection (4) he or she may authorise the payment of a lesser amount of duty that would have been payable had no rebate been granted, and for the purpose of determining such lesser amount of duty the Commissioner may take into consideration the depreciation of the goods in question since the date on which they were entered under rebate:

Provided that if any such goods are sold or disposed of within five years of the date from which they were entered under rebate, this subsection shall not apply.

(6) A film production company to whom a rebate has been granted in terms of this section shall maintain proper records in respect of the goods granted rebate and shall account for them to the Commissioner when requested to do so by him or her.

144Z. Rebate of duty on goods imported by a foreign film producer

(1) Subject to this section, a rebate of duty shall be granted on such goods as the Commissioner may approve which are

imported or taken out of bond by a foreign film producer for use in film production infrastructure.

(2) Any foreign film producer wishing to be granted a rebate of duty in terms of this section shall make an application therefore to the Commissioner in writing, submitting details of—

(a) the goods referred to in subsection (1) on which a rebate is sought;

(b) whether such goods will be imported, taken out of bond or obtained from open stock for use by the foreign film producer in film production infrastructure;

(c) the purpose for which such goods are to be used; and

(d) whether such goods will be exported from Zimbabwe at a future time and, if so, the time within which they will be so exported.

(3) Any foreign film producer claiming a rebate of duty in terms of this section, shall give to the proper officer a written undertaking that such goods will not be disposed of otherwise than in accordance with subsections (4) and (5).

(4) No foreign film producer to whom a rebate of duty in respect of any goods have been granted in terms of this section shall sell or otherwise dispose of such goods in Zimbabwe without the prior permission of the Commissioner.

(5) If the Commissioner gives the permission referred to in subsection (4), he or she may—

(a) authorise disposal without payment of duty to another person or organisation entitled to import, remove from bond, or obtain from open stocks goods under rebate of duty in terms of these regulations.

(b) authorise disposal to any other person or organisation on payment of duty rebated or such lesser amount as

he or she may determine; under such conditions as he may specify:

(6) For the purpose of determining the lesser amount of duty referred to in paragraph (*b*) of subsection (5), the Commissioner may take into consideration the depreciation of such goods since the date on which duty was rebated.

(7) The Commissioner may remit the duty on any goods referred to in subsection (5) and (6) if such goods are disposed of more than ten years after the date on which the duty was rebated.".

5. The principal regulations are amended in the Third Schedule (*Repeals*) by the insertion of the following items—

Title	*Statutory Instrument*
"The Customs and Excise (Electrical Manufacturers) (Rebate) Regulations	378 of 1999
The Customs and Excise (Luggage ware Manufacturer) (Rebate) Regulations	149 of 2015
The Customs and Excise (Textile Manufacturer) (Rebate) Regulations	4 of 2016
The Customs and Excise (Shoe Manufacturer) (Rebate) Regulations	61 of 2017
The Customs and Excise (Food, Soap and Cosmetics Manufacturer) (Rebate) Regulations	157 of 2017
The Customs and Excise (Printing and Packaging Manufacturer) (Rebate) Regulations	259 of 2019
The Customs and Excise (Centre Pivots Manufacturer) (Rebate) Regulations	269 of 2019
The Customs and Excise (Toothpaste Manufacturer) (Rebate) Regulations	250 of 2020
The Customs and Excise (Clothing Manufacturer) (Rebate) Regulations	298 of 2021
The Customs and Excise (Furniture Manufacturer) (Rebate) Regulations	187 of 2024